Loan Agreement

This Loan Agreement (the **"Agreement"**) is entered into _____ (the **"Effective Date"**), by and between _____, with an address of _____ (the **"Lender"**) and _____, with an address of _____, (the **"Borrower"**), individually referred to as "**Party**", and collectively "the **Parties.**"

WHEREAS, the Borrower desires to borrow a fixed amount of money; and

WHEREAS, The Lender agrees to lend a fixed amount of money;

IN CONSIDERATION of, the mutual promises, covenants, and conditions contained herein, the Parties agree as follows:

1. **Loan Amount.** The Parties agree the Lender will loan the Borrower $_____ (the "**Loan**").

2. **Interest Rate.** The Parties agree the Interest Rate for this loan shall be ____% to be accrued monthly.

3. **Loan Term.** This Loan shall be for a period of ____ years/months.

4. **Repayment.** The Parties agree the Borrower shall pay the Lender $_____ per month on the ___ day of each month. Payment shall be applied as follows:

   Principal Loan Amount $_____

   Interest $_____

5. **Late Payments.** Payment shall be considered late if received by the Lender ___ days after its due date. The Lender will have the option to charge a late fee of _____%.

6. **Default.** If the Borrower defaults on its payments and fails to cure said default within a reasonable amount of time, the Lender will have the option to declare the entire remaining amount of principal and any accrued interest immediately due and payable.

7. **Prepayment.** The Borrower will not be penalized for early payment.

8. **Representations and Warranties.** Both Parties represent that they are fully authorized to enter into this Agreement. The performance and obligations of either Party will not violate or infringe upon the rights of any third party or violate any other agreement between the Parties, individually, and any other person, organization, or business or any law or governmental regulation.

9. **Severability.** In the event any provision of this Agreement is deemed invalid or unenforceable, in whole or in part, that part shall be severed from the remainder of the Agreement and all other provisions shall continue in full force and effect as valid and enforceable.

10. **Waiver.** The failure by either party to exercise any right, power, or privilege under the terms of this Agreement will not be construed as a waiver of any subsequent or future exercise of that right, power, or privilege or the exercise of any other right, power, or privilege.

11. **Legal Fees.** In the event of a dispute resulting in legal action, the successful Party will be entitled to its legal fees, including, but not limited to its attorneys' fees.

12. **Legal and Binding Agreement.** This Agreement is legal and binding between the Parties as stated above. This Agreement may be entered into and is legal and binding both in the United States and throughout Europe. The Parties each represent that they have the authority to enter into this Agreement.

13. **Governing Law and Jurisdiction.** The Parties agree that this Agreement shall be governed by the State and/or Country in which both Parties reside/do business. In the event that the Parties reside/do business in different States and/or Countries, this Agreement shall be governed by _____ law.

14. **Entire Agreement.** The Parties acknowledge and agree that this Agreement represents the entire agreement between the Parties. In the event that the Parties desire to change, add, or otherwise modify any terms, they shall do so in writing to be signed by both parties.

[Remainder of this page intentionally left blank. Signature page follows.]

The Parties agree to the terms and conditions set forth above as demonstrated by their signatures as follows:

Lender

Signed: _____

Name: _____

Date: _____

Borrower

Signed: _____

Name: _____

Date: _____